THE REPUBLIC OF CORTESIA DEL MAR
SUPREME COURT

EX PARTE

YODABIRD19

CASE DETAILS

CASE NUMBER: 2

COURT: IceCarim CJ, Brick_WallGaming AJ, and CommradePotatoe AJ

DATE: 17 June 2023 (GMT)

JUDGMENT

JUDGMENT OF THE COURT: *Per Curiam* paras [1] – [11]

PER CURIAM.

I. Introduction

[1] The President requests us to invalidate the "Presidential Bedtime Bill" (the Bill), asserting that the Bill, "which purports to regulate the real-world sleep schedule and medical status of the Cortesian President, is flagrantly out of line with Cortesia Del Mar's jurisdiction and in complete violation of my constitutional right to digital privacy."

[2] For the reasons that follow, we cannot decide this case.

II. Judgment of the Common Court

[3] In the Common Court, THE CHIEF JUSTICE purported to summarily rule in favour of the President. We set out that brief judgment in full:

> "This Court is prepared to declare the Presidential Sleep and Health Bill unconstitutional and invalid, as it plainly violates Article 9(1):
>
> 'Everyone is equal before and under the law, which entails—
>
> (a) the right to equal benefits, protections, and opportunities from the law; and
>
> (b) equal responsibilities from the law in equal circumstances.'
>
> It conceivably also violates a broad array of other rights.
>
> The law applies to the President just as it applies to any ordinary person. It confers not only the same standards of liability [on] the President, but the same protection in equal circumstances. The limitation on this right is manifestly unjustifiable.
>
> In the event, the following order issues:
>
> It is declared that the Presidential Sleep and Health Bill is unconstitutional and invalid."

[4] That judgment was quickly rescinded, and for good reason. The case was *ultra vires* the Common Court. Section 60 of the Constitution[1] makes express that—

> "[i]f either the President or the Vice President dispute the constitutional validity of all or part of a bill submitted to them for their signatures, and their reservations were expressed during the consideration of the bill, they may refer the bill to the Supreme Court for a decision on its constitutional validity in respect of their reservations."

[1] Constitution of the Republic of Cortesia Del Mar, 2022.

[5] In tune, Section 105(5)(b) makes it clear that the Supreme Court has exclusive jurisdiction over "whether a bill is constitutionally valid, but only in the circumstances anticipated in Section 60(1)".

III. This Court's jurisdiction

[6] That same Section puts this matter outside our jurisdiction. The Bill did not pass in the National Forum. And it was withdrawn by its principal sponsor. It never arrived at the desk of the President for his signature.

[7] The consideration of bills is the domain of the National Forum. It is inherently a political task. The legal measurements of this Court should not interfere in those political judgments until the National Forum has done its job. The Constitution gives us no commentary role on bills—at least not until after it has arrived at the President and Vice President's desks for signature.

[8] But before we end this judgment, a word on exclusive jurisdiction and inchoate bills. We endorse Justice Ngcobo's remarks in the South African case *Doctors for Life International v Speaker of the National Assembly*[2]. There he said—

> "the closer the issues to be decided are to the sensitive area of separation of powers, the more likely it is that the issues will fall within [the Constitutional Court's exclusive jurisdiction]. It follows that where a dispute will require a court to decide a crucial political question and thus intrude into the domain of Parliament, the dispute will more likely be one for the exclusive jurisdiction of this Court."[3]

[9] We also gratefully import into our judgment the careful analysis by Cameron AJ of comparative constitutional procedures:

> "The procedure the President invoked is not without parallel in comparable systems, though in the United States, the United Kingdom, Australia, New Zealand and Germany, no pre-enactment judicial procedure for testing statutory or constitutional validity exists. Comparable procedures do exist in other constitutions, though none is quite like [South Africa's]. In Ireland, the Constitution provides a procedure for a pre-enactment reference of certain bills to the Supreme Court by the President for a decision whether the Bill or any specified provision is repugnant to the Constitution. The French Constitution of 1958 provides for the compulsory referral of organic laws (that is, laws on the judiciary, the

[2] (CCT12/05) [2006] ZACC 11; 2006 (12) BCLR 1399 (CC); 2006 (6) SA 416 (CC) (17 August 2006).
[3] Ibid para [24].

composition of parliament, finance and the procedure of the Conseil Constitutionnel), before they are promulgated, to the Conseil Constitutionnel "which shall decide on their compatibility with the Constitution". In addition, other laws may be submitted before promulgation to the Conseil Constitutionnel by the President of the Republic, the Prime Minister, the President of the National Assembly, the President of the Senate, or sixty deputies or senators. A provision that the Conseil Constitutionnel declares unconstitutional "may neither be promulgated nor applied". The French pre-promulgation procedure has a different focus and effect to that of South Africa, since no French law may after promulgation be challenged before the Conseil Constitutionnel for its constitutionality, although certain challenges may be brought before the Conseil d'Etat.

In Canada, the Supreme Court Act imposes an obligation on the Supreme Court to give advisory opinions on the constitutionality of a federal law or proposed federal law. [...] The reference procedure enables an early resolution of the constitutional doubt.

In India, similarly to South Africa, the President may in respect of Bills withhold assent, and return them to Parliament for reconsideration in whole or part, together with recommendations. If the Bill is passed again with or without amendments, and presented to the President, the President must assent to it. However, the Indian Constitution empowers the President to consult the Supreme Court for its opinion about a question of law or fact of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it."[4] (Citing sources) (Internal quotation marks omitted).

IV. Conclusion

[10] For the foregoing reasons, we are unable to decide the President's application. Because Section 105(5)(b), read with Section 60 of the Constitution, peremptorily precludes us from adjudicating on the wisdom (or otherwise) of bills before the National Forum, we need not consider the issue of mootness that also confronts the present matter.

[11] Persuasive as the President's arguments were, this case does not engage our exclusive jurisdiction. Nor is it within the jurisdictional remit of any Cortesian court. Accordingly, we must dismiss the application.

It is so ordered.

[4] *Ex Parte President of the Republic of South Africa: In re Constitutionality of the Liquor Bill* (CCT12/99) [1999] ZACC 15; 2000 (1) SA 732; 2000 (1) BCLR 1 (11 November 1999) paras [7]-[9].